Superior Court of the State of California
County of Orange

Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine

Hearing Date and Time: June 25, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: **Civil Court Reporter Pooling**. For additional information regarding court reporter availability, please visit the court's website at **Court Reporter Interpreter Services**.

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**. Those procedures and guidelines will be strictly enforced.

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PLEASE NOTE: JUDGE HESSELTINE IS UNAVAILABLE FOR ORAL ARGUMENT ON THURSDAY, JUNE 25, 2026. THE PARTIES MAY EITHER SUBMIT ON THE TENTATIVE RULINGS SET FORTH BELOW OR APPEAR ON JUNE 25, 2026, AT 2:00 P.M., TO REQUEST ORAL ARGUMENT, AND THE COURT CLERK WILL PROVIDE A HEARING DATE AS DIRECTED BY JUDGE HESSELTINE. IF NO ONE APPEARS TO REQUEST ORAL ARGUMENT, ALL PARTIES WILL BE DEEMED TO HAVE SUBMITTED ON THE FOLLOWING TENTATIVE RULING AND IT WILL BE ADOPTED AS THE FINAL RULING OF THE COURT.

#	Case Name Case Number	Tentative
1.	***Cardflex, Inc. v. Bluesquare Resolutions*** *2025-01512385*	**OFF CALENDAR** based on request for dismissal filed on June 17, 2026.
2.	***Paradigm Sports Management***	*Please see the above notice regarding oral argument on June 25. 2026* Before the court are the following two petitions: (1) the petition to confirm contractual arbitration award filed by

	LLC vs. Adesanya *2026-01556733*	Paradigm Sports Management LLC (Paradigm Sports) and Paradigm MMA Management LLC (Paradigm MMA collectively, Paradigm) on March 18, 2026, in OCSC case no. 2026-01556733, and (2) the petition to vacate contractual arbitration award filed by Israel Adesanya (Adesanya) and Leon Edwards (Edwards) on March 20, 2026, in OCSC case no. 2026-01557071. As more fully set forth below, Paradigm's petition to confirm the arbitration award is **GRANTED** and Adesanya and Edwards's petition to vacate the award is **DENIED**. There are a couple of initial matters the court must address before reaching the merits of the petitions. First, the parties previously attempted to stipulate to consolidate these two cases, which present competing or cross-petitions directed to the same arbitration award. The clerk's office, however, rejected that stipulation because the parties erroneously filed it in the higher numbered or newer case. The parties have not attempted to re-file the stipulation. Accordingly, to ensure a clear record, <u>the court hereby orders these two cases consolidated for all purposes and designates the older case—i.e., *Paradigm Sports Management LLC vs. Adesanya*, case no. 2026-01556733—as the lead case</u>. All future filings must be made in that case only. Second, the court must note Adesanya and Edwards have improperly cited and argued three unpublished and unciteable cases. (See Adesanya and Edwards Petition at p. 9, and reply at pp. 4, 6, 7.) Specifically, they cited *Chiapparelli v. Henderson*, No. F046363, 2005 WL 1847221 (Cal. Ct. App. Aug. 5, 2005), *Jackson v. X10 Cap.*, LP, No. A170652, 2025 WL 572271 (Cal. Ct. App. Feb. 21, 2025), and *Nemtzov v. Kambur*, No. B339114, 2025 WL 2408980, (Cal. Ct. App. Aug. 20, 2025). California Rules of Court, rule 8.1115(a) states, "Except as provided in (b), an opinion of a California Court of Appeal or superior court appellate division that is not certified for publication or ordered published must not be cited or relied on by a court or a party in any other action." Each of these three cases are decisions by a California Court of Appeal and none of the exceptions in rule 8.1115(b) apply. In the motion, at page 9, footnote 2, Adesanya and Edwards recognize the *Chiapparelli* case is not a published decision, and they claim they are solely citing it for its persuasive value. An unpublished decision, however, may not be cited for that or any other reason.

		The court cautions counsel for Adesanya and Edwards that citation to unpublished decisions may support an award of sanctions, and counsel should refrain from doing so in the future. (See *People v. Williams* (2009) 176 Cal.App.4th 1521, 1529; *Alicia T. v. County of Los Angeles* (1990) 222 Cal.App.3d 869, 885.) Because it was improper for counsel to cite the foregoing authorities, the court has not considered them. Turning to the merits of the petitions, any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc., § 1285.) A petition to confirm an arbitration award must "(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any." (Code Civ. Proc., § 1285.4.) Pursuant to Code of Civil Procedure section 1286, if a petition to confirm an arbitration award is duly served and filed, "the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." Here, Paradigm duly served and filed its petition to confirm the arbitration award, and that petition complies with Code of Civil Procedure section 1285.4 by setting forth the substance of the parties' arbitration agreement, setting forth the name of the arbitrator—Laura C. Abrahamson (Arbitrator)—and attaching a copy of the arbitration decision and final award. Accordingly, the award must be confirmed unless Respondents' request to vacate establishes a ground for vacating the award. Adesanya and Edwards seek vacatur under the California Arbitration Act, Code of Civil Procedure section 1285, et. seq. (CAA). The grounds for vacating an arbitration award are statutorily limited. Under the CAA, the court shall vacate the award if the court determines, inter alia, "[t]he arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted." (Code Civ. Proc., § 1286.2, subd. (a)(4).) Adesanya and Edwards argue the Arbitrator exceeded her powers by making a decision on the enforceability of the Professional Fighters Agency and Management Contract,

dated February 12, 2017, between Paradigm MMA and Edwards (Edwards Contract), and the Professional Fighters Agency and Management Contract, dated August 1, 2019, between Paradigm MMA and Adesanya (Adesanya Contract), after the illegality of the entire agreements had been raised with the Arbitrator by Adesanya and Edwards.

An award upholding an illegal contract exceeds the arbitrator's powers. Indeed, "an award springing out of an illegal contract, which no court can enforce, cannot stand on any higher ground than the contract itself." (*Loving & Evans v. Blick* (1949) 33 Cal.2d 603, 610 (*Loving & Evans*); *Sheppard, Mullin, Richter & Hampton, LLP v. J-M Mfg. Co. Inc.* (2018) 6 Cal.5th 59, 68.) Accordingly, "[a]lthough we recognized the general rule . . . that the merits of a dispute before an arbitrator are not subject to judicial review, 'the rules which give finality to the arbitrator's determination of ordinary questions of fact or of law are inapplicable where the issue of illegality of the entire transaction is raised in a proceeding for the enforcement of the arbitrator's award.'" (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 31 (*Moncharsh*).)

Indeed, "'when a party seeks to use the processes of the courts to obtain confirmation of an arbitrator's award, and an issue is raised concerning the alleged illegality of the contract upon which the award is based, the trial court is the tribunal which must determine such issue of illegality upon the evidence presented to it . . . . A party seeking confirmation cannot be permitted to rely upon the arbitrator's conclusion of legality for the reason that paramount considerations of public policy require that this vital issue be committed to the court's determination whenever judicial aid is sought.'" (*Ahdout v. Hekmatjah* (2013) 213 Cal.App.4th 21, 34 (*Ahdout*), quoting *Loving & Evans*, *supra*, 33 Cal.2d at p. 614.)

These rules "'permitted judicial review of an arbitrator's ruling where a party claimed the entire contract or transaction was illegal.' [Citation.]" (*Ahdout*, *supra*, 213 Cal.App.4th at p. 35.) Accordingly, "[w]hereas the building contract in *Loving [& Evans]* was rendered void in its entirety by the contractor's lack of a license, the illegality alleged in *Moncharsh* affected only one provision of an employment contract 'containing a number of provisions governing various aspects' of the employment of an attorney by his law firm." As explained by the Supreme Court in *Moncharsh*, "when . . . the alleged illegality goes to only a portion of the contract (that does not include the arbitration agreement), the entire controversy, including

		the issue of illegality, remains arbitrable.” (*Moncharsh*, *supra*, 3 Cal.4th at p. 30.) In *Lindenstadt v. Staff Builders, Inc.* (1997) 55 Cal.App.4th 882, the trial court deferred to an arbitrator’s determination that a contract was not illegal and confirmed an award awarding the plaintiff commissions on certain real estate transactions. The Court of Appeal, however, reversed and remanded the case to the trial court so that it could independently decide whether the Real Estate Law barred compensation to the plaintiff. (*Id*. at p. 893.) The court held that it did not matter that the arbitrator had decided that issue, because “‘any preliminary determination of legality by the arbitrator . . . [is] not . . . binding upon the trial court’ [citation].” (*Id*. at p. 892.) Rather, the trial court must conduct a de novo review of the claim of illegality, considering all admissible evidence submitted to the court, whether or not that evidence had been submitted to the arbitrator. (*Ibid*. & fn. 8.) “Of course, the trial court should also consider the arbitration award itself, including the testimony and the other evidence described therein.” (*Id*. at p. 893, fn. 8.) “If [the plaintiff] acted as an unlicensed real estate broker on a transaction, the arbitrator exceeded her powers (Code Civ. Proc., § 1286.2, subd. (d)) to the extent she awarded compensation for that work.” (*Id*. at p. 893, underlining added.) Here, Adesanya and Edwards contend their entire contracts with Paradigm are illegal and unenforceable because the contracts violate the Boxing Act or the State Athletic Commission Act, Business and Professions Code sections 18600, et seq. They also contend the contracts are illegal because they violate the Miller-Ayala Athlete’s Act, Business and Professions Code sections 18895, et seq. These claims that the entire contracts are illegal, however, do not automatically require the court to vacate the arbitration award. Rather, as the foregoing authorities demonstrate, these claims require the court to conduct a de novo or independent review of the legality of the contracts based on Adesanya’s and Edwards’s challenges. The award must be vacated in its entirety only to the extent the court agrees these challenges render the entire contract illegal. If the court does not find the entire contract illegal, then the Arbitrator exceeded her powers only to the extent she awarded Paradigm damages based on a contractual provision the court finds illegal based on its de novo review. An unlawful contract is one which is (1) contrary to an express provision of law; (2) contrary to the policy of

		express law, though not expressly prohibited; or (3) otherwise contrary to "good morals." (Civ. Code § 1667.) Under California law, illegal provisions may be severable if not central to the purpose of the agreement. Civil Code section 1598 states, "Where a contract has but a single object, and such object is unlawful, whether in whole or in part . . . the entire contract is void." Civil Code section 1599 states, "Where a contract has several distinct objects, of which one at least is lawful, and one at least is unlawful, in whole or in part, the contract is void as to the latter and valid as to the rest." (See also *Marathon Entertainment, Inc. v. Blasi* (2008) 42 Cal.4th 974, 980-981 [finding the licensing requirements under the Talent Agencies Act applied to personal manager performing services for actress and ordinary rules of contract interpretation applied including the severability doctrine of Civil Code sections 1598 and 1599].) "Courts are to look to the various purposes of the contract. If the central purpose of the contract is tainted with illegality, then the contract as a whole cannot be enforced. If the illegality is collateral to the main purpose of the contract, and the illegal provision can be extirpated from the contract by means of severance or restriction, then such severance and restriction are appropriate." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 121; *Abrahamson v. Juniper Networks, Inc.* (2004) 115 Cal.App.4th 638, 658, 667 ["taint of illegality and unconscionability cannot be removed from this arbitration agreement by severing or restricting the objectionable terms"].) The "overarching inquiry" is whether the interests of justice would be furthered by severance. (*Armendariz*, *supra*, 24 Cal.4th at p. 124.) Based on its de novo review of the materials the parties submitted to the court, the court does not find the Edwards Contract and the Adesanya Contract are entirely illegal. Rather, the court finds only a portion of these two Contracts to be illegal, and the court further finds those portions are severable. The central purpose of the Edwards Contract and the Adesanya Contract is not tainted with illegality. The plain language of the Edwards Contract and the Adesanya Contract demonstrate there were multiple purposes of the contracts. The scope of engagement includes Paradigm MMA acting as Edwards's/Adesanya's "worldwide representative with respect to the procurement, negotiation, execution, and management of" (1) Fight Contracts, i.e., "all employment, opportunities, agreements,

		and the like for Fighter's professional fighting services with foreign and domestic professional fighting organizations" and (2) Sponsor Contracts, which includes marketing contracts, commercial opportunities, media contracts, and, as to Adesanya only, industry opportunities. The portion of the Contracts regarding Paradigm MMA procuring or managing Fight Contracts clearly violates the Boxing Act or the State Athletic Commission Act and the regulations promulgated thereunder, as the Arbitrator found. There is no dispute Paradigm MMA is a "manager" within the meaning of Business and Professions Code section 18628. The evidence presented before the Arbitrator showed, among other things, Paradigm MMA did not hold a valid California management license during the term of the contracts in violation Business and Professions Code section 18642, the contracts were not executed on forms approved by the California State Athletic Commission (CSAC) in violation of California Code of Regulations Title 4, section 220, were not placed on file with CSAC in violation of Code of Regulations Title 4, section 221, the parties did not appear at the same time before CSAC to sign the agreements and they did not receive written approval in violation of Code of Regulations Title 4, Section 222, and the contracts were not limited to the statutory maximum five-year term in violation of Code of Regulations Title 4, section 222. (Award at p. 19.) The portion of the Contracts regarding Paradigm procuring or managing Sponsor Contracts, however, are unrelated to actual mixed martial arts or professional contests, matches, and exhibitions, but instead relate to sponsorship deals. Those portions of the Contracts do not violate any provision of the Boxing Act or the State Athletic Commission Act, and therefor are not illegal for violating the Act. Adesanya and Edwards also argue Paradigm MMA and the management agreements are subject to the Miller-Ayala Athlete's Agent Act, and the Adesanya Contract and Edwards Contract are illegal for violating that Act. (Vacatur Petition, pp. 12-14.) The Miller-Ayala Act governs the conduct of agents acting on behalf of professional athletes, including public disclosure requirements, the form and content of agent contracts, recordkeeping requirements, financial services or investment advice, false representations, advertising, etc. (Bus. & Prof. Code, §§ 18896-18897.5.) Any agent contract that is negotiated by an athlete agent that fails to comply with the Miller-

		Ayala Act is void and unenforceable. (Bus. & Prof. Code, § 18897.9, subd. (a).) It does not appear Adesanya and Edwards argued in arbitration that their Contracts were illegal because they violated the Miller-Ayala Athlete's Agent Act. Assuming for the sake of argument that Adesanya and Edwards may raise this illegality challenge for the first time on a petition to vacate the arbitration award, they have failed to present any specific argument or evidence to establish this basis for illegality and allow the court to find the Contract illegal as part of its de novo review. Indeed, Adesanya and Edwards merely argue the contract provisions pertaining to the Sponsor Contracts could potentially be void under the Miller-Ayala Act, and they fault the Arbitrator for failing to address a challenge they apparently never raised. Specifically, in their petition to vacate, Adesanya and Edwards simply argue, "If Paradigm ever failed to comply with Miller-Ayala, the Management Agreements would be illegal and unenforceable, and Paradigm would not be entitled to any recovery from Edwards and Adesanya. This determination of legality is one only the court can make based on a developed record of facts. However, without any facts on the record nor mention of Miller-Ayala in her Order, the Arbitrator awarded damages to Paradigm, for unpaid sponsorship commissions. Both the determination as to legality of the agreement and awarding of commissions without a specific finding of legality under Miller-Ayala are evidence that the arbitrator exceeded her authority." (Petition to Vacate at p. 14, lines 14-21.) Adesanya and Edwards do not identify any specific provision of the Miller-Ayala Act that their Contracts allegedly violate. Similarly, they present no evidence showing the Contracts violate that Act. Rather, they simply present the hypothetical argument, if the Contracts violated that Act, the Contracts would be illegal. Although the court conducts a de novo review to determine illegality, that does not relieve Adesanya and Edwards of their obligation to show the Contracts are illegal. For want of argument and evidence, the court finds the Adesanya Contract and Edwards Contract are not illegal based on purported violations of the Miller-Ayala Act. Notably, both the Edwards Contract and the Adesanya Contract contain a severability clause: "In the event that any portion of this Agreement shall be illegal or otherwise unenforceable, such provision shall be severed, and the

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<tr><td></td><td></td><td>balance of the Agreement shall continue in full force and effect.” (Edwards Contract at ¶ 22; Adesanya Contract at ¶ 26; Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 517 [“if the contract contains a severance clause, the court should take it into account as an expression of the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced”].)

Moreover, it appears the illegal provision (i.e., the portion related to the Fight Contracts) can be severed such that enforcing the balance of the contracts would be in the interests of justice. The evidence shows Paradigm provided valuable services to Adesanya and Edwards, and severing the illegal provisions is appropriate to avoid an inequitable windfall to Adesanya and Edwards and doing so does not condone an illegality. (Award at pp. 23-25.)

Based on the foregoing, and its de novo review of Adesanya’s and Edwards’s illegality challenges, the court finds the Arbitrator did not exceed her powers because she did not enforce an illegal contract. Accordingly, Paradigm’s petition to confirm the award is GRANTED and Adesanya and Edwards’ petition to vacate the petition is DENIED.

Paradigm’s counsel is ordered to give notice of this ruling and may submit a proposed judgment confirming the arbitration award.</td></tr>
<tr><td>3.</td><td>Adesanya vs. Paradigm Sports Management, LLC

2026-01557071</td><td><u>Please see the above notice regarding oral argument on June 25. 2026</u>

Please see the tentative above on case no. 2 -- Paradigm Sports Management LLC vs. Adesanya, case no. 2026-01556733</td></tr>
<tr><td>4.</td><td>Chestnut Square Homeowner's Association vs. Republic Services, Inc.

2026-01542342</td><td><u>Please see the above notice regarding oral argument on June 25. 2026</u>

Before the court is a petition to compel arbitration filed by petitioner Chestnut Square Homeowner’s Association (Petitioner) against respondents Republic Services, Inc. (RSI) and Republic Waste Services of Southern California, LLC (RWS; collectively, Respondents). As more fully set forth below, the petition is DENIED.

Petitioner requests the court find the parties must arbitrate under a contract signed by City of Santa Ana (City) and RWS on or about August 28, 2021 (City Agreement). Neither Petitioner nor RSI are parties to the City Agreement, and the City Agreement does not contain an</td></tr>
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		arbitration provision. Petitioner nonetheless assert a separate contract between Petitioner and RWS (Chestnut Contract), which does contain an arbitration provision, permits the court to order all parties to arbitrate the dispute arising under the City Agreement, which is essentially the same dispute arising under the Chestnut Contract. The court disagrees. As to whether the court or the arbitrator determines issues of arbitrability, "[s]imply put, '[t]he question whether the parties have submitted a particular dispute to arbitration, i.e., the "question of arbitrability," is "an issue for judicial determination [u]nless the parties clearly and unmistakably provide otherwise."'" (*Greenspan v. LADT, LLC* (2010) 185 Cal.App.4th 1413, 1440.) There is no evidence the parties, including non-signatories, agreed the arbitrator could determine the issue of arbitrability of the City Agreement, which again does not contain an arbitration provision. The court will proceed and make the determination. "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists . . . ." (Code Civ. Proc., § 1281.2.) In a petition to compel arbitration, "the moving party, in essence, requests specific performance of a contractual agreement to arbitrate the controversy . . . . The trial court must determine in advance whether there is a duty to arbitrate the controversy . . . . This determination 'necessarily requires the court to examine and, to a limited extent, construe the underlying agreement.'" (*Gravillis v. Coldwell Banker Residential Brokerage Co.* (2006) 143 Cal.App.4th 761, 770–71.) "'"'The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.' . . . Because California has a '"strong public policy in favor of arbitration"' . . . , '. . . arbitration agreements should be liberally interpreted, and arbitration should be ordered unless the agreement clearly does not apply to the dispute in question' . . . . 'Doubts as to whether an arbitration [provision] applies to a particular dispute are to be resolved in favor of sending the parties to arbitration.' . . ." [Citations.] [¶] "Arbitration is . . . a matter of contract, and the parties may freely delineate the area of its application. The court's role . . . must be strictly limited to

		a determination of whether the party resisting arbitration agreed to arbitrate." (*Id*. at p. 771.) "The Ninth Circuit has confirmed that non-signatories may enforce arbitration agreements. [Citation.] More specifically, "[w]hen the charges against a parent company and its subsidiary are based on the same facts and are inherently inseparable, a court may refer claims against the parent to arbitration even though the parent is not formally a party to the arbitration agreement."'" (*McLeod v. Ford Motor Co.*, No. EDCV 04-1255VAPSGLX, 2005 WL 3763354, at *4 (C.D. Cal. Apr. 14, 2005).) Significantly, in the *McLeod* case, it was the nonsignatory parent company that was compelling arbitration. The signatory plaintiff could not join the nonsignatory parent to the plaintiff's claims against the subsidiary to avoid the arbitration agreement in the plaintiff's agreement with the subsidiary. """[A] party may be estopped from asserting that the lack of his signature on a written contract precludes enforcement of the contract's arbitration clause when he has consistently maintained that other provisions of the same contract should be enforced to benefit him. . . . . [¶] A nonsignatory is estopped from refusing to comply with an arbitration clause 'when it receives a "direct benefit" from a contract containing an arbitration clause.' [Citations.] In *International Paper*, a defendant signatory sought to compel a plaintiff nonsignatory to arbitrate. The court held the plaintiff, who sought a direct benefit from the contract, could not refuse to comply with the arbitration clause. [Citation.] Equitable estoppel principles are also applicable under these circumstances: a plaintiff has an arbitration agreement with a subsidiary corporation; the plaintiff sues the parent corporation; and the plaintiff's claims against the parent company are based on the same facts and are inherently inseparable. In that circumstance, the Fourth Circuit has held that the parent corporation may enforce the arbitration agreement." (*Boucher v. All. Title Co.* (2005) 127 Cal.App.4th 262, 269.) As noted, the City Agreement does not contain an arbitration clause. The Chestnut Contract does contain an arbitration clause which states that Petitioner and RWS are to arbitrate any and all existing controversies or claims arising out of the Chestnut Contract. (Petition, Exh. F p. 2.) Nothing states the Chestnut Contract arbitration provision permits parties to force an arbitration of a separate contract. The Chestnut Contract also provides that while RWS is an individual operating subsidiary of RSI, RSI does not perform waste services or contract with customers and

accordingly all obligations to Petitioner rest solely with RWS and not with the parent company. (Petition, Ex. F p. 1.)

The City Agreement on the other hand, dated August 17, 2021, was between City and RWS. (Petition, Ex. A.) The City Agreement does not contain an arbitration clause. The City Agreement does state only City and RWS are the parties to the City Agreement and that the agreement does not confer any rights to any other entities that are not representatives, successors, or permitted assigns of City/RWS. (Petition, Ex. A p. 168.)

As arbitration is a matter of contract (*Gravillis*, *supra*, 143 Cal.App.4th at p. 771) and RSI did not sign either of the subject contract, nor did it agree to arbitrate any contract, RSI cannot be compelled to arbitrate claims under the City Agreement. Similarly, RWS only agreed to arbitrate the claims under the Chestnut Contract, it did not agree to arbitrate claims under the City Agreement.

Petitioner also is not a party to the City Agreement and to the extent that Petitioner seeks to compel arbitration of the City Agreement, the Chestnut Contract would appear to supersede the City Agreement. (Petition, Ex. F p. 3.) To the extent Petitioner argues the issues of the City Agreement are arbitrable as they are the same or similar to those at issue in the Chestnut Contract, the Chestnut Contract specifically states the Chestnut Contract applies to any issues related to the services under the Chestnut Contract. Thus, Petitioner appears to only be able to bring issues related to the services Respondents provide under the terms of the Chestnut Contract.

As to the equitable estoppel arguments, "[i]n any case applying equitable estoppel to compel arbitration despite the lack of an agreement to arbitrate, a nonsignatory may compel arbitration only when the claims against the nonsignatory are founded in and inextricably bound up with the obligations imposed by the agreement containing the arbitration clause. In other words, allegations of substantially interdependent and concerted misconduct by signatories and nonsignatories, standing alone, are not enough: the allegations of interdependent misconduct must be founded in or intimately connected with the obligations of the underlying agreement.'" (*Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 219.)

Although Petitioner can compel RWS to arbitrate the terms of the Chestnut Contract because there is an arbitration clause in the Chestnut Contract and the issues are related thereto, Petitioner as a non-signatory to the City

		Agreement cannot compel non-signatory RSI to arbitrate under the City Agreement as is no arbitration clause contained in the City Agreement and neither Petitioner nor RSI are parties to the City Agreement. The arbitrator may determine what issues are arbitrable under Chestnut Contract, but the terms of the Chestnut Contract do not permit the arbitrator to force non-signatory parties to arbitrate issues from a different contract that does not have an arbitration provision. To the extent Petitioner claims to be able to enforce the terms of the City Agreement as a third-party beneficiary, the express terms of the City Agreement state the rights under the City Agreement only pertains to City and RWS and representatives, successors and permitted assigns" (Petition, Ex. A p. 168.) There is no evidence Petitioner falls under any of those categories. In short, Petitioner seeks to turn many of the authorities it cites on their head by seeking to join a nonsignatory as a defendant and sweep that defendant into arbitration when the nonsignatory is not asserting any rights under the agreement containing the arbitration agreement. Based on the foregoing, the petition is **DENIED**. Respondents' counsel is ordered to give notice of this ruling.
5.	***Mann vs. Nice Sheen International, Inc.*** *2024-01403670*	<u>*Please see the above notice regarding oral argument on June 25. 2026*</u> Before the court is an unopposed motion to compel defendant and judgment debtor Nice Sheen International, Inc. (Debtor), to respond to requests for production, set one, and request for monetary sanctions filed by plaintiffs and judgment creditors Jeffrey Mann and Suzette Mann (collectively, Creditors). As more set forth below, the motion is **GRANTED**. Creditors served requests for production, set one, on Debtor. (Rader Decl. ¶ 2, Ex. 1.) Debtor failed to serve any responses to the requests for production by the date the motion was filed. (Rader Decl. ¶¶ 3-4, Ex. 2.) The responses are late, and Debtor has waived any objections thereto. (Code Civ. Proc., § 2031.300, subd. (a).) Creditors' motion is proper to compel Debtor's initial objection-free responses to the requests for production. (Code Civ. Proc., § 2031.300, subd. (b).) Creditors also request monetary sanctions against Debtor and its attorneys of record, which are permissible. (Code

		Civ. Proc., §§ 2023.010, 2031.300, subd. (c).) Creditors request a reasonable $1,520 in monetary sanctions on this motion. (Rader Decl. ¶ 6.) Based on the foregoing, the motion is **GRANTED**. Debtor is ordered to serve code-complaint responses, without objections, to the requests for production and to produce all responsive documents within 20 days of service of written notice of the ruling. The request for monetary sanctions also is **GRANTED**. Creditors are awarded $1,520 in attorney fees as against Debtor and its counsel of record, jointly and severally, payable to Creditors' counsel within 30 days of service of notice of this ruling. Creditors' counsel is ordered to give notice of these rulings.
6.	***Brimm vs. Mobilitas Insurance Company*** *2026-01565804*	*Please see the above notice regarding oral argument on June 25. 2026* Before the court is the motion of Mobilitas Insurance Company (Mobilitas) to compel Byle Brimm (Brimm) to respond to requests for production of documents, set one, and request for monetary sanctions. As set forth below, the motion is **CONTINUED TO THURSDAY, JULY 9, 2026, AT 2:00 P.M., IN DEPARTMENT C23**, for Mobilitas to demonstrate this court has jurisdiction over Brimm and that this court is the proper court for these proceedings. This case is an uninsured or underinsured motorist case filed pursuant to Insurance Code section 11580.2, subdivision (f), to obtain a case number for purposes of having the court resolve any discovery disputes that may arise between the parties or otherwise make any other appropriate orders in aid of the arbitration between the parties. By the current motion, Mobilitas seeks an order compelling Brimm to respond to document requests Mobilitas propounded. Mobilitas, however, has failed to establish this court is the proper venue for these proceedings. Section 11580.2, subdivision (f), provides the superior court having jurisdiction over uninsured motorist proceedings such as this is the superior court (a) in the proper county for the filing of a lawsuit against the uninsured motorist for bodily injury arising from the accident or (b) in any county specified in the policy as a proper county for arbitration or action on the policy. (See Ins. Code, § 11580.2(f)(1), (2).) Here, the petition states the underlying accident occurred in San Francisco. Nothing is presented to show this court is the proper court for these proceedings. The court will need

		a declaration or other evidence showing this court is the court having jurisdiction over these proceedings. Similarly, it is unclear this court has personal jurisdiction over Brimm sufficient to allow it to make the requested order directing Brimm to take certain actions. The court's file shows the petition initiating these proceedings and this motion were electronically served on an attorney (Eric R. Gruber) on Brimm's behalf. Typically, personal service of a case initiating document on the defendant or respondent is necessary to confer jurisdiction over the defendant or respondent. The court acknowledges service on counsel may be sufficient in proceedings such as these. (See *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 927-928.) Mobilitas, however, has not presented sufficient evidence to show *Miranda* applies in this case so as to provide the court with jurisdiction to make the requested order. Mobilitas should submit a declaration or other evidence showing this court has jurisdiction over Brimm. Any supplemental declarations or other filings addressing these issues must be filed and served by **<u>July 1, 2026</u>**. Based on the foregoing, the motion is **CONTINUED** as set forth above. Mobilitas's counsel is ordered to give notice of this ruling.
7	***In re: 23726 Dolphin Cover, Laguna Niguel, CA 92677*** *2026-01541675*	*<u>Please see the above notice regarding oral argument on June 25. 2026</u>* On April 9, 2026, the court heard the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale filed by petitioner Prestige Default Services, LLC (Petitioner). Petitioner filed the petition under Civil Code section 2924j following a trustee's sale pursuant to a deed of trust that Petitioner conducted on or about June 24, 2024, regarding the property located at 23726 Dolphin Cove, Laguna Niguel, California 92677 (Property). After paying off the trust deed and all senior liens, the claim of Foothill Town Homes Community Association, and Petitioner's fees and expenses, Petitioner seeks to deposit the surplus funds of $623,084.12 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner is unable to distribute these surplus funds. On April 9, 2026, the court granted the petition and ordered Petitioner to deposit the surplus funds with the court. On

		April 14, 2026, the court signed an order granting the petition. On or about May 28, 2026, Petitioner deposited the surplus funds with the court, and therefore Petitioner has now been discharged from the responsibility to distribute those funds. In granting the petition, the court scheduled today's hearing to resolve any and all claims to the surplus funds and ordered any person with a claim to some or all of the funds to file a claim at least 15 days before the hearing. On or about April 13, 2026, the clerk gave notice of today's hearing to all parties identified in the petition as potentially have a claim to some or all of the surplus funds. As of June 22, 2026, the court has not received any claim to the surplus funds. Accordingly, the surplus funds shall stay on deposit with the clerk until such time as a claim to the funds is duly asserted, or until the funds escheat to the court. (Gov. Code, § 68084.1(a) ["Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served"]; Code Civ. Proc. § 1502(a)(3) ["This chapter does not apply to any of the following: [¶] . . . [¶] (3) Any property in the official custody of a court if the property may be transferred to the Trial Court Operations Fund under Section 68084.1 of the Government Code"] Code Civ. Proc., § 1519 ["All tangible personal property located in this state, and, subject to Section 1510, all intangible personal property, held for the owner by any government or governmental subdivision or agency, that has remained unclaimed by the owner for more than three years escheats to this state"].) Having received no claims to the surplus funds, the court hereby sets an order to show cause hearing as to why the surplus funds on deposit with the court should not escheat to the court. The order to show cause hearing is scheduled for **Monday, July 2, 2029, at 9:30 a.m., in Department C23**. <u>The clerk is directed to serve notice of this ruling on all parties upon whom the clerk served notice of the court April 9th ruling.</u>

8.	***In re: 30 Galeana, Foothill Ranch, Ca 92610*** *2026-01550091*	<u>*Please see the above notice regarding oral argument on June 25. 2026*</u> Before the court is the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale filed by petitioner California TD Specialists (Petitioner). The petition is filed under Civil Code section 2924j following a trustee's sale Petitioner conducted on June 27, 2025, pursuant to a deed of trust, regarding the property located at 30 Galeana, Foothill Ranch, California 92610 (Property). After paying off the trust deed that lead to the sale and Petitioner's fees and expenses, Petitioner seeks to deposit the surplus funds of $143,391.14 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner is unable to determine the priority of the written claims received to the surplus proceeds. The court finds the petition complies with the notice and other requirements of Civil Code section 2924j. Accordingly, the petition is **GRANTED**. Petitioner is ordered to deposit all surplus funds relating to the trustee's sale for the Property with the clerk of the court forthwith. Upon deposit of the funds with the clerk of the court, Petitioner shall be discharged of further responsibility for the distribution of the sale proceeds pursuant to Civil Code section 2924j, subdivision (c). Upon deposit with the clerk of the court, the surplus funds shall stay on deposit with the clerk until such time as claims to the funds are duly asserted and granted, or until the funds escheat to the court. (Gov. Code, § 68084.1(a) ["Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served"]; Code Civ. Proc. § 1502(a)(3) ["This chapter does not apply to any of the following: [¶] . . . [¶] (3) Any property in the official custody of a court if the property may be transferred to the Trial Court Operations Fund under Section 68084.1 of the Government Code"] Code Civ. Proc., § 1519 ["All tangible personal property located in this state, and, subject to Section 1510, all intangible personal property, held for the owner by any government or governmental subdivision or agency, that

has remained unclaimed by the owner for more than three years escheats to this state”].)

The court has received claims to the surplus funds from (1) Riverside County Department of Child Support Services, (2) Paula Mead, (3) Foothill Ranch Maintenance Corporation, and (4) Peterson Law, LLP. The court also has received a “Request for Judicial Notice of Appearance” from claimants Andy Atiyeh and Lannette Atiyeh (see ROA 37), but no actual claim was submitted by these claimants. Finally, the petition also identifies claims by Crest Builders, Inc. and the State of California Franchise Tax Board, but neither of these claimants have filed any claim with the court.

The court cannot grant any of these claims at this time because the funds have not yet been deposited with the court and the clerk has not yet given notice to all interested parties of a hearing to determine any and all claims to the funds. The second paragraph of Civil Code section 2924j(d) states, “Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled by the court, the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein.” (Underlining added.)

The court therefore sets a hearing to consider the claims it has received plus any additional claims to the surplus funds that may be filed for **THURSDAY, SEPTEMBER 10, 2026, AT 2:00 P.M., IN DEPARTMENT C23**. (Civ. Code, § 2924j(d).) The foregoing claimants who already have filed a claim with the court may stand on their existing claim or may file supplemental information in support of their claim and otherwise address the priority to which their claim is entitled. Any claims to the surplus funds or other filings must be filed with the court and served on all interested parties at least 15 days before the above hearing date.

The clerk of the court is directed to give notice of the foregoing hearing by first class mail to all claimants identified in attachment 8 to the petition and to all parties who have filed any claim or other document in this action.

Petitioner’s counsel is ordered to give notice of this ruling and to submit a proposed order.

9.	***City of Buena Park vs. Forsyth*** *2026-01546372*	*<u>Please see the above notice regarding oral argument on June 25. 2026</u>* Before the court is the continued hearing on the petition for appointment of receiver filed by petitioner City of Buena Park (Petitioner) regarding the real property located at 5832 Darlington Avenue, Buena Park, California 90621 (Property). For the reasons set forth below, the hearing is **CONTINUED TO AUGUST 13, 2026, AT 2:00 P.M., IN DEPARTMENT C23**. On April 30, 2026, this petition came on for hearing. The court continued the hearing to June 25, 2026, because there was no proof of service showing the petition and notice of hearing were served on respondent Richard L. Forsyth (Respondent) as required by Health and Safety Code section 17980.7, subdivision (c). On May 1, 2026, the court granted Petitioner's Renewed Ex Parte Application for Order Directing Service of Summons on Respondent. On May 12, 2026, Order Directing Service of Summons was signed by the court. (ROA 56.) On May 20, 2026, Petitioner filed an amended proof of service showing proper service of the petition and notice of hearing on Respondent by posting and mailing. However, the court's May 12, 2026 order directing service of summons also required the summons to be served by publication for four consecutive weeks. (ROA 56.) The proof of publication filed by Petitioner indicates the summons was published in the Buena Park/Anaheim Independent on May 22, 2026, May 29, 2026, June 5, 2026, and June 12, 2026. (ROA 62.) The time to file a written pleading in response to Petitioner's summons in this action is 10 days. (Health & Safety Code, § 17990.) Government Code section 6064, pertaining to publication of a summons, provides that "[t]he period of notice commences with the first day of publication and terminates at the end of the twenty-eighth day, including therein the first day." (Govt. Code, § 6064; see also Code Civ. Proc., § 415.50(c) ["Service of a summons [by publication] . . . is deemed complete as provided in Section 6064 of the Government Code"].) Here, based on the May 22, 2026 first day of publication, the period of notice terminated on June 18, 2026. Respondent thus has 10 days from June 18, 2026, or by June 28, 2026, to file a response to the petition. (Health & Safety Code, § 17990.) The hearing on June 25, 2026,

		thus does not allow sufficient time for Respondent to respond to the petition. The court therefore will **CONTINUE** the hearing as stated above to ensure Respondent is given sufficient statutory notice. Counsel for Petitioner shall give notice of this ruling to all interested parties and file a proof of service thereof at least five court days prior to the hearing. Such notice shall be given both by mailing and posting at the property.
10.	***Anderson vs. Nordstrom, Inc.*** *2025-01534989*	<u>*Please see the above notice regarding oral argument on June 25. 2026*</u> Before the court is the verified petition to preserve evidence filed by petitioner Yvonne Anderson (Anderson) on December 19, 2025. As more fully set forth below, the petition is **DENIED**. A Petition to preserve evidence under Code of Civil Procedure section 2035.010 et seq. must be served in the manner provided for service of summons. (Code Civ. Proc., § 2035.040, subd. (a).) No proof of service reflecting valid service, or any service whatsoever, on respondent Nordstrom, Inc. (Nordstrom), however, has been filed in this case. Moreover, a notice of hearing must be served on the expected adverse party at least 20 days before the date set for the hearing. (Code Civ. Proc., § 2035.040, subd. (c).) No such notice has been filed here, nor any proof of service reflecting notice. In addition, the Petition fails to comply with Code of Civil Procedure section 2035.030, subdivision (b)(2), as Anderson has not shown why she was presently unable to bring the intended action. The petition also appears to be inconsistent with Code of Civil Procedure section 2035.010, subdivision (b), which prohibits the use of section 2035.010, et seq. for purposes of either ascertaining the possible existence of a cause of action or defense to it, or of identifying those who might be made parties to an action not yet filed. Indeed, Nordstrom has expressly assured Anderson that it has preserved all surveillance footage. Based on the foregoing, the petition is **DENIED**. Anderson's counsel is ordered to serve notice of this ruling.
11.	***Naama vs. Dubai Holdings, LLC***	<u>*Please see the above notice regarding oral argument on June 25. 2026*</u>

	2025-01523991	Before the court is a motion to set an order to show cause hearing regarding contempt against Michelle Fonseca-Kamama, Esq., and Michael Caspino, Esq., filed by plaintiff Esra Naama (Plaintiff). As more fully set forth below, the motion is **DENIED**. Plaintiff requests the court set an order to show cause as counsel's alleged failure or refusal to comply with a writ of execution and turn over certain funds in counsel's trust account which may otherwise be used to satisfy a sister state judgment issued in Plaintiff's favor. Although the court may issue such an order, the court declines to do so in this instance. Counsel has produced evidence showing the Wyoming judgment on which the sister state judgment and writ of execution are based has been vacated by the Wyoming court that issued it. (Caspino Decl. ¶¶ 8-10, Exh. A; Fonseca-Kamana Decl. ¶¶ 9-10, Exh. A.) Plaintiff did not file any reply to respond to these representations. As it appears the judgment and writ of execution on which this motion is based are no longer enforceable based on the underlying Wyoming judgment being vacated, the court **DENIES** this motion. Based on the Wyoming judgment being set aside, the court sets an OSC as to why the sister state judgment in this case should not be vacated and these proceedings dismissed without prejudice to future proceedings depending on the outcome of the Wyoming case. The OSC is set for **MONDAY, AUGUST 10, 2026, AT 9:30 A.M., IN DEPARTMENT C23**. The clerk is directed to give notice of this ruling.
12.	***City of Orange vs. Leon*** *2008-00114884*	<u>*Please see the above notice regarding oral argument on June 25. 2026*</u> Before the court is the continued hearing on the motion of Kenneth Jacobsen, as trustee of So Cal Family Irrevocable Investment Trust (Jacobsen), for leave to file a complaint in intervention and to vacate or clarify the injunctive order executed on January 27, 2010. As more fully set forth below, the motion is **DENIED**. By this motion, Jacobsen seeks to intervene in the case as a matter of right pursuant to Code of Civil Procedure section 387, subdivision (d)(1). Jacobsen seeks to intervene to challenge the stipulated permanent injunction and judgment entered in this action on or about January 10, 2027. Among other things, the injunction prohibits certain uses of the property located at 7418 E. Grovewood Lane in the City of Orange, including

		advertising, promoting, soliciting, planning, accepting any compensation or engaging in any acts in furtherance of using the property for commercial parties, commercial events or commercial rentals of less than 30 days. Jacobsen asserts he is entitled to intervene in this action as the current owner of the property and he asserts the stipulated injunction is invalid because the parties who stipulated to the injunction, Burke Leon and Andrew Leon, were not the owners of the property at that time. Whether intervention is of right or permissive, the party seeking to intervene must make a timely application seeking leave to intervene. (Code Civ. Proc., § 387, subd. (d); *Lofton v. Wells Fargo Home Mortgage* (2018) 27 Cal.App.5th 1001, 1012 (*Lofton*).) "Timeliness is measured from 'the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented.' [Citation.]" (*Lofton*, at p. 1013.) "'Timeliness is determined by the totality of the circumstances facing would-be intervenors, with a focus on three primary factors: "(1) the stage of the proceeding at which an applicant seeks to intervene; (2) the prejudice to other parties; and (3) the reason for the delay."' [Citation.] '"[D]elay in itself does not make a request for intervention untimely."' [Citation.] When mandatory intervention 'is sought, because "the would-be intervenor may be seriously harmed if intervention is denied, courts should be reluctant to dismiss such a request for intervention as untimely, even though they might deny the request if the intervention were merely permissive."' [Citation.]" (*Crestwood Behavioral Health Inc. v. Lacy* (2021) 70 Cal.App.5th 560, 574.) Here, the court's file reveals plaintiff City of Orange (City) filed this action against Burke Leon and Andrew Leon in November 2008, to enjoin a public nuisance. In October 2009, the parties reached a settlement at a mandatory settlement conference. That settlement resulted in the stipulated judgment and permanent injunction Jacobsen seeks to challenge. As noted, the judgment was entered on January 10, 2010. Jacobsen asserts he acquired the property subject to the injunction on September 27, 2023—i.e., nearly 14 years after the judgment was entered. Jacobsen filed this motion on February 9, 2026, and this court first heard the motion on April 30, 2026. At that time the court continued the hearing to the present date because Jacobsen failed to provide copies of any of the title documents he referred to in his motion as establishing his

		right to and the basis to intervene. The court also noted the motion raised a number of issues including, the timeliness of the motion, whether the injunction was recorded against the property so as to provide constructive notice, how and when Jacobsen learned about the injunction, did he purchase the property subject to the injunction, what are the governing standards for intervening 16 years after the judgment was entered, can Jacobson intervene when he had no interest in the property at the time the judgment was entered, and is a collateral attack the appropriate means to assert Jacobsen's challenges. The court continued the hearing to today's date to allow Jacobsen to address these and other issues. (See April 9, 2026 Minute Order.) Jacobsen has provided copies of many of the title documents relating to the property, but he largely has left unaddressed many of the questions the court raised relating to the timeliness and appropriateness of intervention at this point. In terms of his knowledge of the injunction, Jacobson's supplemental declaration states, in considered using the property as an AirBnB in 2025 he discovered through his counsel the injunction/judgment at issue. He does not provide any more specifics about his discovery of the injunction/judgment, but does state he and his counsel met with the City of Orange on June 23, 2025, to discuss the issue. Jacobsen has failed to show his intervention is timely or appropriate. Again, he seeks to challenge a 16-year-old judgment. This case has long been over. He fails to answer the court's questions regarding whether there was constructive notice of the injunction/judgment through any recording. Rather, he merely vaguely says he learned of the injunction/judgment through counsel nearly two years after he acquired the property. No more specifics are provided. Jacobsen provides no authority to support his intervention other than his citation to section 387. Again, we have a 16-year-old judgment that was entered years before Jacobsen acquired any interest in the property and no justification for this timing is provided. Moreover, Jacobsen seeks to intervene to file a complaint in intervention asserting claims for (1) quiet title, (2) declaratory relief, (3) revocation of order, and (4) injunctive relief. Filing a complaint in intervention would actually align Jacobsen with the City, who is the actual plaintiff in this case. What Jacobsen is actually seeking to do is to assert new affirmative claims challenging the judgment in this case, which has been

		resolved for a considerable period of time. He is not seeking to defend against the nuisance claims the City alleged in its complaint. Rather, he is seeking to challenge the authority of the original defendants to stipulate to the judgment and bind future owners of the property. What Jacobsen has identified is a new and separate dispute between he and the City as to the enforceability of the injunction/judgment. He is not seeking to litigate the nuisance claims asserted in this case, which the parties long ago resolved through their settlement. Rather, he is seeking to challenge the binding nature of the agreement between the City and the original defendants. This is a collateral attack on that judgment and agreement that is more appropriately asserted in a new case between the City and Jacobsen that is focused on the new issues and claims Jacobsen seeks to assert. He has failed to show his right to intervene or the appropriateness of reopening this case to resolve separate issues. Based on the foregoing, the motion is **DENIED**. The clerk is directed to give notice of this ruling.
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